

Introduction to Tort Law



Housekeeping

The Module Handbook

- ❑ Crucial to read this properly
- ❑ This is your first port of call for any questions regarding the course as a whole

Teaching Team

- Dr. Jeremy Letwin
- Dr. Megan Blakely
- Dr. Sarah Gilmartin

Your first point of contact is your Workshop Leader

Contact Rules

1. Check the handbook, lectures, and relevant Moodle pages.
2. Carefully craft your emails and make them as clear as possible.
3. Specific questions only
 - A. 'Do you have any advice on topic X?'
 - B. 'I missed the tutorial, can I have some notes for it?'
 - C. 'Do you have any tips on the exam?'

Reading

- ❑ E Horsey and E Rackley, *Tort Law* (9th edn, Oxford University Press, 2025) ('H&R' for short)
- ❑ Cases (!!) – Westlaw
- ❑ Journal articles – OneSearch Lancaster
- ❑ Other textbooks – Winfield & Jolowicz/McBride and Bagshaw

Weekly reading lists + workshop reading

Summative Assessment

1. MCQ 30%

- Test overall knowledge
- Example MCQs in workshops

2. Exam 70%

- A choice of three problem questions and three essay questions
- Answer one problem question and one essay question
- There will be some overlap of topics. This does **not** mean you have to learn everything in the same level of detail. We avoid putting together disconnected topics and try to create genuine options. However, lots of topics are necessarily interlinked.

THE EXAM IS
ABOUT THE STUFF
IN THE
WORKSHOPS

GO TO WORKSHOPS

PREPARE FOR WORKSHOPS

Formative Assessment

- ☐ **Not** compulsory
- ☐ **Do not do it** unless you want to
- ☐ Between the first and second terms

How to Fail in Tort

- ☐ Use AI in your assessment
- ☐ Do not use recommended sources
- ☐ Use out-of-date materials
- ☐ Do not use what you have paid for
- ☐ Expect what you have paid for to be enough alone

How to Succeed in Tort

- ❑ Start with the most recent UKSC cases
- ❑ Understand which parts are science and which are art
- ❑ Be systematic, create lists, memorize tests
- ❑ The value of paper over screens (printing isn't selfish)
- ❑ Law as a great equalizer



What is Tort Law?

Some definitions

- ❑ Tort = civil wrong
- ❑ Tortfeasor = initial wrongdoer
- ❑ Tortious = conduct constituting a tort [n.b. not 'tortuous']
- ❑ Plaintiff = claimant



Working definitions of Tort

- ❑ “A tort is a species of wrong. A wrong is a breach of a duty owed to someone else. A breach of a duty owed to someone else is an infringement of a right they have against the tortfeasor.” (R Stevens)
- ❑ “In tort law, a claimant, C, will have a cause of action if either (i) she has had her rights wrongly infringed or (ii) she has incurred a non-trivial loss, injury or damage that was caused by certain wrongful conduct on the part of a defendant, D.” (J Murphy)

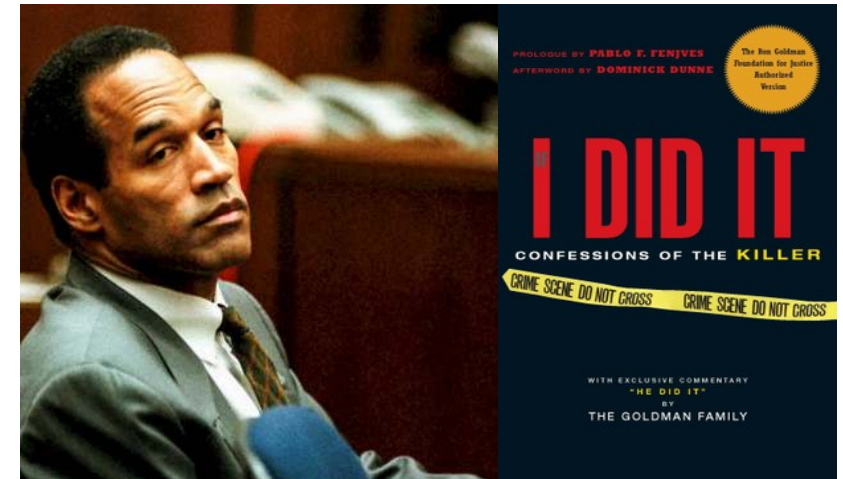
Tort v the other stuff

Tort v Criminal

- Overlap (e.g. assault and battery)
- Ingredients of a crime v elements of a tort
- Compensation not sanction
- Different courts, burdens of proof, etc.

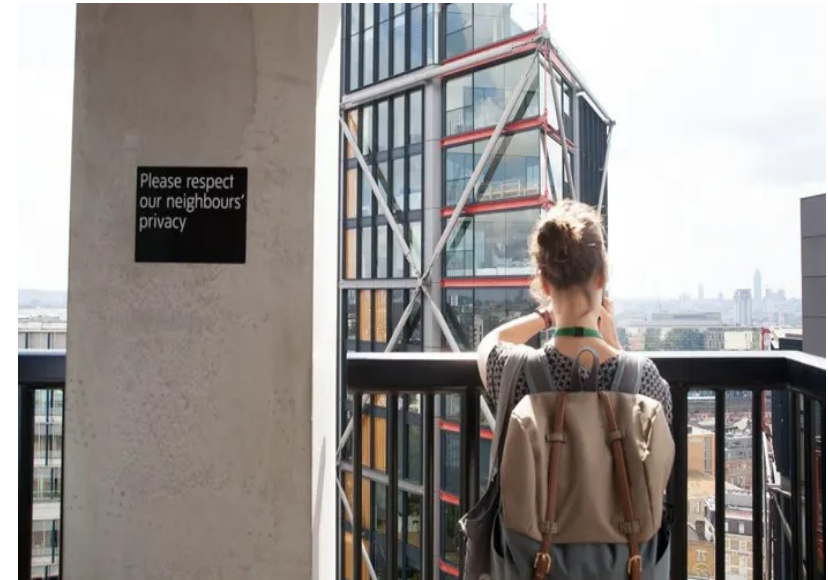
Tort v Contract

- Overlap (e.g. concurrent liability)
- Source of duty: 'general' not 'special' rights
- Content of duty: fixed by law not contract
- Aims: compensation not protecting expectations



Some typical tort cases

- A pedestrian was injured when she was caught up in the arrest of a suspect by the police – *Robinson v Chief Constable of West Yorkshire* [2018] UKSC 4
- Owners of flats next to Tate Modern Gallery claimed that ‘overlooking’ by people on the viewing gallery was a nuisance – *Fearn v Tate Gallery* [2023] UKSC 4



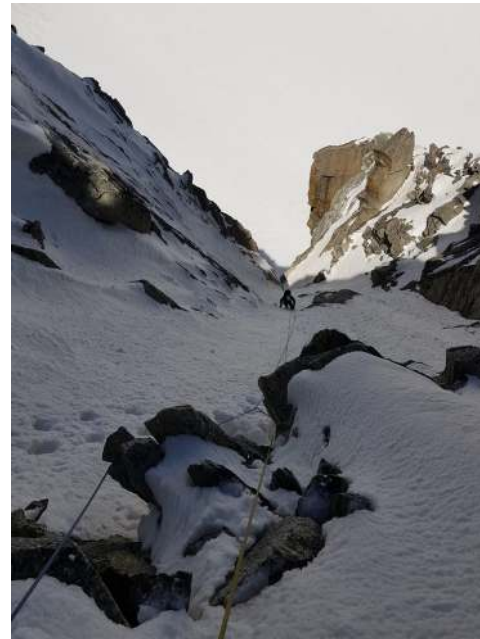
Some typical tort cases

- ❑ C injured crossing road because local authority failed to keep bushes on central reservation in good nick – *Yetkin v Mahmood* [2010] EWCA Civ 776
- ❑ Teacher developed depression due to stress at work where employer had brushed him off – *Barber v Somerset CC* [2004] UKHL13



Woodroffe-Hedley v Cuthbertson (1997)

- ❑ Alpine guide (D) climbing with a client (C). D placed only one ice screw while leading. D fell, ice screw popped, dragged C off too. C died, but D lived.
- ❑ D found liable in negligence.
- ❑ N.b. D later exonerated by British Mountain Guides Association.







LAW OF TORT

Examples of Torts

- ☐ Negligence
- ☐ Nuisance
- ☐ Intentional interferences with the person (assault, battery, false imprisonment)
- ☐ Defamation
- ☐ Misuse of private information
- ☐ Occupiers' liability
- ☐ Product liability

Organised by a hierarchy of protected interests?

1. Bodily autonomy/integrity
2. Property interests
3. Mental integrity
4. Economic interests
5. Reputation
6. Privacy

Other ways of organising?

□ Basis of liability?

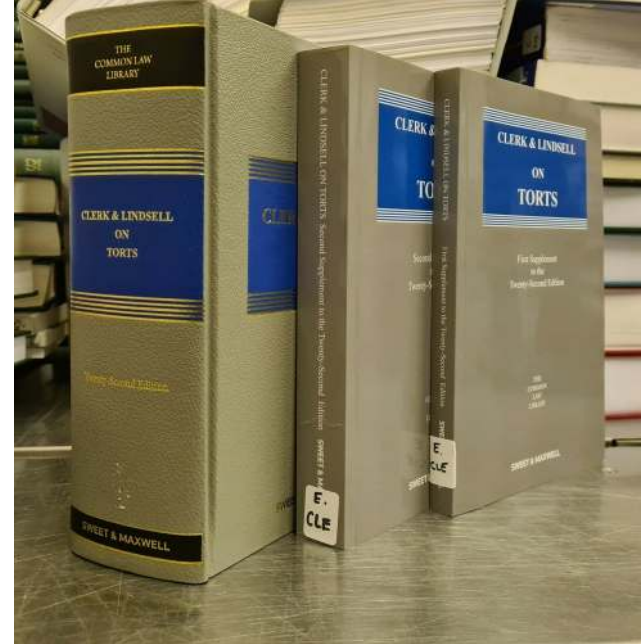
1. Intentional
2. Negligent
3. Strict Liability

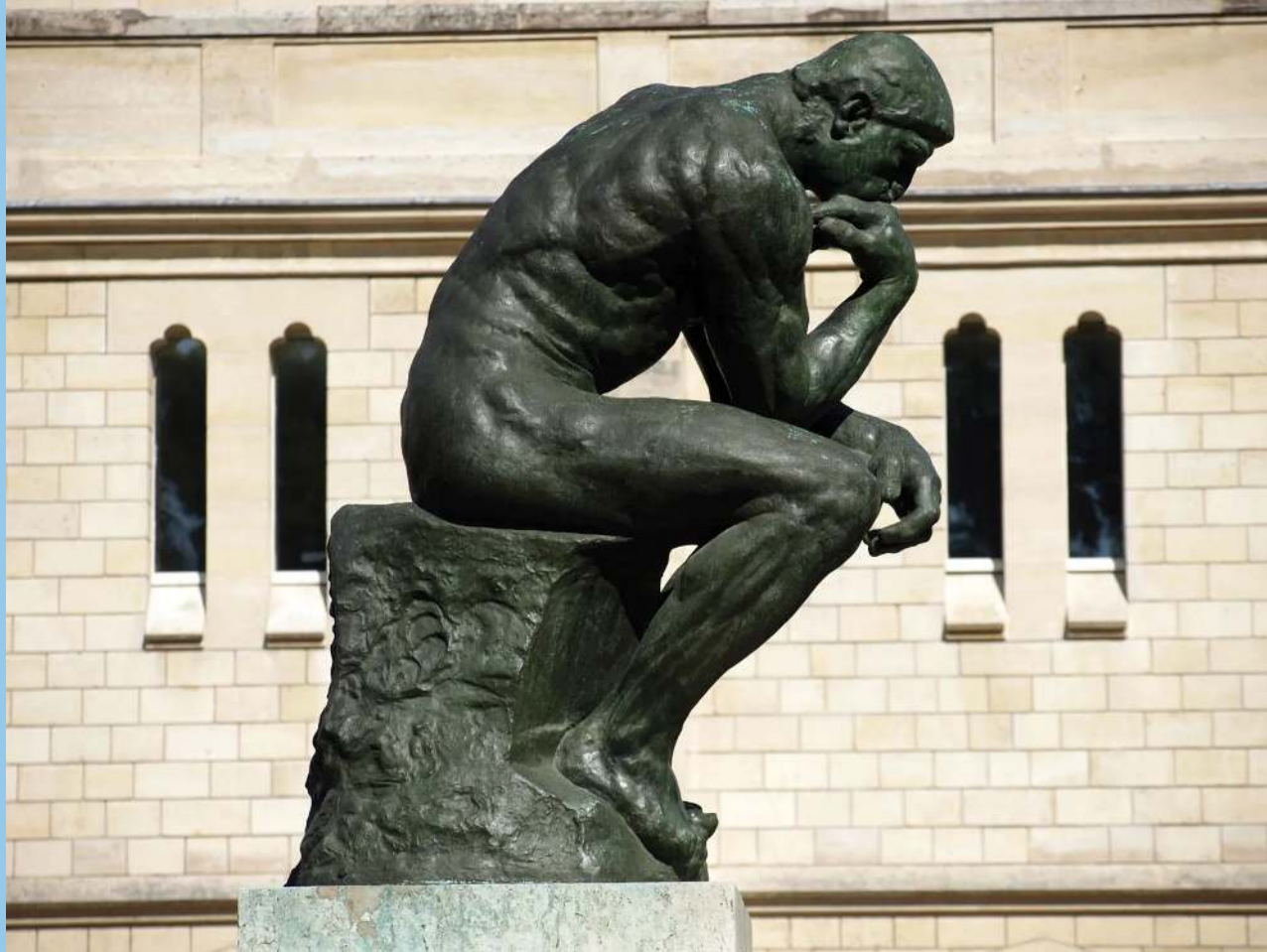
□ Consequences suffered by C?

- Actionable per se
- Actionable only if damage suffered

□ Alphabetically?

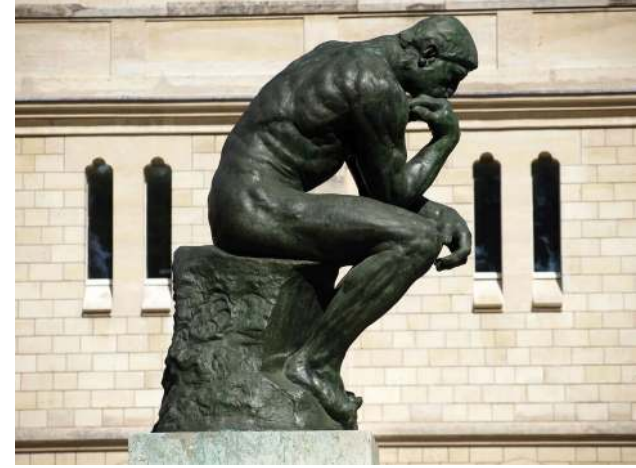
- “Tort is what is in the tort books, and the only thing holding it together is in their binding” (T Weir)





What is the Purpose of Tort Law?

Why bother with theories?



“[W]e deepen our understanding when we learn that disparate phenomena are linked together. In physics, for example, the theory of thermodynamics showed us the relationship between mechanics and heat. In economics, the theory of the firm showed us that, across industries that look nothing alike, a simple principle helps explain the organization of economic activity. ... [A]bsent such a theory, our understanding of the way the world works seems incomplete.” (S Hershovitz)

Theories with different aims

□ Interpretive theories

- Does the theory fit with and justify the body of law?
- Does the theory have 'explanatory power'?
- Allows us to understand what the law is, to predict developments, and to assess how far a body of law is coherent

□ Prescriptive theories

- Is the theory internally coherent?
- Does the theory fit with our basic moral intuitions?
- Can the theory achieve its aims in practice?
- Allows us to argue rationally about what the law ought to be

Corrective Justice



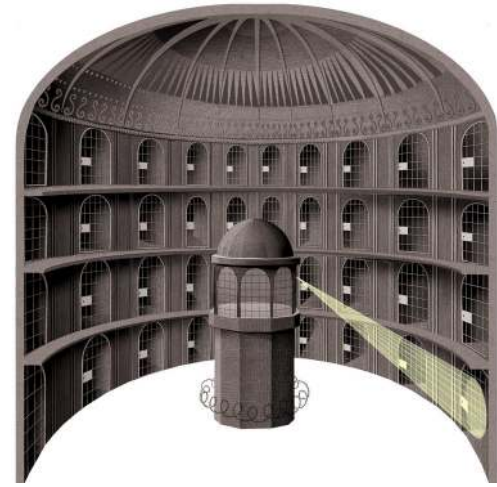
- ❑ “Individuals who are responsible for the wrongful losses of others have a duty to repair the loss”. (J Coleman)
- ❑ “Corrective justice is ... an interpersonal or bipolar justice. Questions of corrective justice are answered, not by looking at individuals in isolation or at societies as a whole, but by examining interactions between individuals.” (A Beever)
- ❑ ‘Relational wrongs’

Rights Theory



“Before a defendant can be characterized as a tortfeasor the anterior question of whether the claimant had a right against him must be answered. The law of torts is concerned with the secondary obligations generated by the infringement of primary rights. The infringement of rights, not the infliction of loss, is the gist of the law of torts. This conception of the law of torts I shall call the ‘rights model’.” (R Stevens)

Compensation & Deterrence



- ❑ Not about justice between individuals, but rather, achieving policy goals for society as a whole
- ❑ Deterrence of antisocial conduct, and compensation for those who have been injured

Enterprise Liability / Risk

- Loss-spreading

- “Tort law ... has the potential to transform a burden that would be crushing if borne by one individual or family into a relatively small cost borne by many.” (J Goldberg)



Economic Deterrence Theory



- ❑ Loss-prevention and the maximisation of well-being
- ❑ People should internalise negative externalities
- ❑ Tort should achieve the optimal balance of precautions and accidents

No grand unified theory?

“The internet would have us believe that every problem can be solved by "one weird trick." That's always a scam, and most of us know not to fall for it. But when it comes to legal theory, too many of us are tempted to sign up for that one weird trick that explains all of tort (or contract, or law in general).” (S Hershovitz)

